

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Monday, July 27, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, July 27, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-03415	Jesus Lopez, et al. vs Raul Garcia, et al.
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Motion to Compel the Deposition Plaintiff, Juan Espinoza, An Individual, And Request for Sanctions

The motion to compel the deposition of Plaintiff Juan Espinoza is GRANTED.

Service of a notice of deposition is effective to require a party to attend and testify. (Code Civ. Proc. § 2025.280 subd. (a).) Plaintiff Espinoza failed to appear for his properly noticed deposition on May 29, 2026. Plaintiff Espinoza is ordered to appear at deposition upon a mutually agreeable date and time.

The Court notes that due to being relieved as counsel, Attorney Park and the law firm Downtown L.A. Law Group have no duty to produce Plaintiff Espinoza for deposition. Unless Plaintiff Espinoza has obtained other counsel, it is Defendant's responsibility to serve the deposition notice upon Plaintiff Espinoza and make arrangements directly with him for his deposition.

Defendant's request for sanctions is DENIED. Neither Defendant's notice or memorandum states the statutory basis for the sanctions, nor is it stated what type of sanctions are sought.

24CV-06496 Selena Virrueta, et al. vs Amelica Piceno

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. Appear to address the status of the unconditional settlement for which notice was filed May 28, 2026, with a settlement date of May 11, 2026, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date of unconditional settlement.

25CV-03246 People vs \$160,625.00 Currency

Status Conference

Appearance required. Appear to address status of forfeiture proceedings.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Short Cause Court Trials
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, July 27, 2026
1:30 pm

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Case No.	Title / Description
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24CV-03396	Mark Adams vs Jose Navarro
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Order to Show Cause Re: Dismissal - Notice of Settlement trailing case 18PR-00131

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David A. Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, July 27, 2026
1:30 p.m.

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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26CV-03095	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Ex Parte Request to Continue Trial

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David A. Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, July 27, 2026
1:30 p.m.

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Case No.	Title / Description
24CV-05262	TD Bank USA, N.A. vs. R. E. Zaragoza Reynoso

Motion to Set Aside Default and Vacate Default Judgment

The motion by Defendant to set aside the default and vacate the default judgment on the ground that Defendant did not receive actual notice in time to file a timely response in the action is DENIED because the motion is untimely and deficient under both Code of Civil Procedure sections 473(b) and 473.5. The proof of service of summons and complaint filed on January 1, 2025, indicates Defendant was served by substituted service on a co-resident at Defendant's residence on December 8, 2024. Defendant's default and default judgment were entered on February 20, 2025. After earlier attempts in May 2026, the present motion to set aside the default and vacate the default judgment was filed on June 29, 2026.

Defendant's motion under Section 473(b) to vacate the default judgment is untimely. A motion under Section 473(b) must be made within a reasonable time, in no case exceeding six months, after the judgment was taken, and must be accompanied by a copy of the proposed answer. In this case, the motion was made more than a year after the judgment was entered and is not accompanied by a copy of Defendant's proposed answer.

The Court also finds Defendant's motion under Section 473.5 to vacate the default judgment is untimely. The notice of a motion under Section 473.5 "shall be served and filed within a *reasonable* time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered." (Code Civ. Proc., § 473.5, subd. (a).) The motion "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect." (Code Civ. Proc., § 473.5, subd. (b).) Plaintiff's declaration submitted in opposition to Defendant's motion states that on December 11, 2025, Plaintiff mailed correspondence that notified Defendant that judgment had been entered in this case. (D'Anna Decl., ¶ 10, Exh. 2.) The letter is dated more than 180 days prior to the filing of the present motion. Plaintiff's supporting declaration also states that Defendant contacted Plaintiff to discuss settlement in March 2025 and April 2026. (D'Anna Decl., ¶¶ 9, 11.) Further, Defendant's declaration does not expressly state that his lack of actual notice in time to defend the action was not caused by his avoidance of service or inexcusable neglect. Based on the competing declarations from Plaintiff and by Defendant, the Court does not find Defendant acted within a reasonable time to file and serve his motion within a reasonable time after written notice of the judgment in December 2025, and his declaration does not establish that his lack of actual notice in time to defend that action was not caused by his avoidance of service or inexcusable neglect.

Motion to Stay Enforcement of Judgment

Defendant's motion to stay execution of judgment is **DENIED**. The request for stay of execution of judgment under Code of Civil Procedure section 918 is untimely and Defendant has not cited any other applicable legal authority.

25CV-00469

Wells Fargo Bank, N.A. vs. Matthew Bain

Motion for Summary Judgment

The unopposed motion for summary judgment or in the alternative summary adjudication by plaintiff Wells Fargo Bank, N.A., is **GRANTED**. The Court grants Plaintiff's request to take judicial notice of the summons, complaint, and proof of service of summons and complaint filed in this case. Upon consideration of all the evidence set forth in the moving papers, particularly the declaration of Loan Workout Specialist Chad Ray authenticating business records related to this action, the Court finds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law. Plaintiff has proven each element of its causes of action for breach of contract. The burden shifts to Defendant to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(1).) By not opposing the motion, Defendant has failed to meet his burden.

Judgment shall be entered for Plaintiff and against Defendant Matthew Bain. The Court will sign the proposed order lodged with the moving papers.

The case management conference scheduled for August 14, 2026, is vacated.

25CV-03286

Barclays Bank Delaware vs. Victor Gonzalez

Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Barclays Bank Delaware is GRANTED without leave to amend the answer. The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of contract and Defendant's answer admits all allegations of the complaint and does not allege any facts constituting an affirmative defense. Defendant did not file an opposition indicating how the answer might be amended to assert a defense.

Judgment shall be entered forthwith in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and proposed judgment submitted with the moving papers.

The court trial scheduled for September 9, 2026, is vacated.

25CV-05372

Bank of America, N.A. vs. Johnny Carrillo

Motion to Deem Admitted Requests for Admission

The unopposed motion by plaintiff Bank of America, N.A., for an order deeming admitted the genuineness of any documents and the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Johnny Guadalupe Carrillo is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

26CV-02355

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-02479

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03302 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03642 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Demurrer to Complaint

Appearance required. For a demurrer to the complaint in an unlawful detainer action, an opposition and reply to an opposition may be made orally at the time of the hearing. (Code Civ. Proc., § 1170, subd. (c).)
